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**Intergovernmental Conference on an international
legally binding instrument under the United Nations
Convention on the Law of the Sea on the
conservation and sustainable use of marine
biological diversity of areas beyond
national jurisdiction**

Third session

New York, 19–30 August 2019

**Draft text of an agreement under the United Nations
Convention on the Law of the Sea on the conservation and
sustainable use of marine biological diversity of areas
beyond national jurisdiction**

Note by the President

Introduction

1. The Intergovernmental Conference on an international legally binding instrument under the United Nations Convention on the Law of the Sea on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction is being convened pursuant to General Assembly resolution [72/249](#) to consider the recommendations of the Preparatory Committee established pursuant to Assembly resolution [69/292](#) on the elements and to elaborate the text of an international legally binding instrument under the United Nations Convention on the Law of the Sea on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, with a view to developing the instrument as soon as possible (resolution [72/249](#), para. 1).
2. The negotiations shall address the topics identified in the package agreed in 2011, namely, the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, in particular, together and as a whole, marine genetic resources, including questions on the sharing of benefits, measures such as area-based management tools, including marine protected areas, environmental impact assessments and capacity-building and the transfer of marine technology (*ibid.*, para. 2).
3. The work and results of the Intergovernmental Conference should be fully consistent with the provisions of the Convention, and the process and its result should



not undermine existing relevant legal instruments and frameworks and relevant global, regional and sectoral bodies (*ibid.*, paras. 6 and 7).

4. As part of the process for the preparation of the zero draft of the instrument, at the first substantive session of the Intergovernmental Conference, held from 4 to 17 September 2018, participants discussed the topics identified in the package agreed in 2011 and some cross-cutting issues on the basis of a President's aid to discussions ([A/CONF.232/2018/3](#)), bearing in mind the recommendations concerning sections III. A and B of the report of the Preparatory Committee ([A/AC.287/2017/PC.4/2](#)) and taking into account other material produced in the context of the Preparatory Committee. At the second session of the Conference, held from 25 March to 5 April 2019, delegations engaged in discussions based on the ideas and proposals contained in a President's aid to negotiations ([A/CONF.232/2019/1](#)), which was aimed at facilitating text-based negotiations and included treaty language and options concerning the four elements of the package and some cross-cutting issues. At the conclusion of the second session, the President was requested to prepare a document with the aim of enabling delegations to negotiate the text of the future instrument.

5. The annex to the present note contains the draft text of an agreement under the United Nations Convention on the Law of the Sea on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, prepared by the President of the Conference, with the assistance of the Division for Ocean Affairs and the Law of the Sea of the Office of Legal Affairs of the United Nations, in response to that request. The document is structured in a form akin to a treaty and contains treaty language with provisions addressing each of the four topics identified in the package agreed in 2011, as well as cross-cutting issues.

6. In the light of the discussions held and proposals made at the second session, the present document is aimed at streamlining the options contained in the President's aid to negotiations, including, *inter alia*, by merging options where possible, consolidating provisions across sections of the text to avoid duplication, and rearranging some sections to improve flow and readability, thereby also reducing the number of alternative options in the text. Accordingly, while efforts were made to take into account the views expressed and proposals made during the first two sessions of the Intergovernmental Conference, not every delegation's preferred option or language may be reflected in the text. Efforts were also made to harmonize the text across sections. In some cases, and in an attempt to propose a way forward where there were different positions, new language has been proposed in the light of suggestions made during the discussions and drawing from the provisions of existing instruments. New draft provisions under "Settlement of disputes", "Non-Parties to this Agreement" and "Final provisions", the last of which was prepared with the assistance of the Treaty Section of the Office of Legal Affairs, are included in the present document for consideration by the Conference.

7. Square brackets are used to indicate mainly the following: (a) where there are two or more alternative options within a provision; (b) where a proposed text or idea was the subject of limited discussion; (c) where new text has been included as a possible compromise; and (d) where support was expressed for a "no text" option, either within a provision or in relation to a provision as a whole. However, the absence of square brackets does not imply agreement on an idea or specific language, as the present text has yet to be considered by the Intergovernmental Conference in its current form or context.

8. While efforts have been made to adopt a consistent approach across sections, including with regard to the use of brackets, some differences may be reflected in the text.

9. The structure of the present document is without prejudice to the structure of the future instrument. Its content is also without prejudice to the position of any delegation on any of the matters referred to therein and does not preclude consideration of matters not included in the document.

10. The aim of the present document is to facilitate further progress in the negotiations. To that end, delegations are encouraged to study it with a view to considering whether agreement might be reached on specific provisions, and whether other ideas and proposals might be suggested for the purpose of reaching agreement.

Annex

Draft text of an agreement under the United Nations Convention on the Law of the Sea on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction

PREAMBLE

The States Parties to this Agreement,

Recalling the relevant provisions of the United Nations Convention on the Law of the Sea, including the obligation to protect and preserve the marine environment,

Stressing the need to respect the balance of rights, obligations and interests set out in the Convention,

Stressing the need for the comprehensive global regime to better address the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction,

Respecting the sovereignty, territorial integrity and political independence of all States,

Desiring to promote sustainable development,

Aspiring to achieve universal participation,

Have agreed as follows:

PART I GENERAL PROVISIONS

Article 1 Use of terms

For the purposes of this Agreement:

- [1. “Access” means, in relation to marine genetic resources, the collection of marine genetic resources [, including marine genetic resources accessed *in situ*, *ex situ* [and *in silico*] [[and] [as] [digital] [genetic] sequence data [and information]]].]
2. “Activity under a State’s jurisdiction or control” means an activity over which a State has effective control or exercises jurisdiction.
3. “Area-based management tool” means a tool for a geographically defined area, other than a marine protected area, through which one or several sectors or activities are managed with the aim of achieving particular conservation and sustainable use objectives [and affording higher protection than that provided in the surrounding areas].
4. “Areas beyond national jurisdiction” means the high seas and the Area.
5. “Convention” means the United Nations Convention on the Law of the Sea of 10 December 1982.
- [6. “Cumulative impacts” means impacts on the same ecosystems resulting from different activities, including past, present or reasonably foreseeable activities, or from the repetition of similar activities over time, including climate change, ocean acidification and related impacts.]

[7. Alt. 1. “Environmental impact assessment” means a process to evaluate the environmental impact of an activity [to be carried out in areas beyond national jurisdiction [, with an effect on areas within or beyond national jurisdiction]] [, taking into account [, inter alia,] interrelated [socioeconomic] [social and economic], cultural and human health impacts, both beneficial and adverse].]

[7. Alt. 2. “Environmental impact assessment” means a process for assessing the potential effects of planned activities, carried out in areas beyond national jurisdiction, under the jurisdiction or control of States Parties that may cause substantial pollution of or significant and harmful changes to the marine environment.]

[8. “Marine genetic material” means any material of marine plant, animal, microbial or other origin containing functional units of heredity [collected from areas beyond national jurisdiction] [, it does not include material made from material, such as derivatives, or information describing material, such as genetic sequence data].]

[9. Alt. 1. “Marine genetic resources” means any material of marine plant, animal, microbial or other origin, [found in or] originating from areas beyond national jurisdiction and containing functional units of heredity with actual or potential value of their genetic and biochemical properties.]

[9. Alt. 2. “Marine genetic resources” means marine genetic material of actual or potential value.]

10. “Marine protected area” means a geographically defined marine area that is designated and managed to achieve specific [long-term biodiversity] conservation and sustainable use objectives [and that affords higher protection than the surrounding areas].

[11. “Marine technology” means information and data, provided in a user-friendly format, on marine sciences and related marine operations and services; manuals, guidelines, criteria, standards, reference materials; sampling and methodology equipment; observation facilities and equipment (e.g., remote sensing equipment, buoys, tide gauges, shipboard and other means of ocean observation); equipment for *in situ* and laboratory observations, analysis and experimentation; computer and computer software, including models and modelling techniques; and expertise, knowledge, skills, technical, scientific and legal know-how and analytical methods related to marine scientific research and observation.]

12. (a) “States Parties” means States that have consented to be bound by this Agreement and for which this Agreement is in force.

(b) This Agreement applies *mutatis mutandis*:

(i) To any entity referred to in article 305, paragraph 1 (c), (d) and (e), of the Convention, and

(ii) Subject to article 67, to any entity referred to as an “international organization” in annex IX, article 1, of the Convention that becomes a Party to this Agreement, and to that extent “States Parties” refers to those entities.

[13. “Strategic environmental assessment” means the evaluation of the likely environmental, including health, effects, which comprises the determination of the scope of an environmental report and its preparation, the carrying out of public participation and consultations, and the taking into account of the environmental report and the results of the public participation and consultations in a plan or programme.]

[14. “Transfer of marine technology” means the transfer of the instruments, equipment, vessels, processes and methodologies required to produce and use

knowledge to improve the study and understanding of the nature and resources of the ocean.]

[15. Alt. 1. “Utilization of marine genetic resources” means to conduct research and development on the genetic and/or biochemical composition of marine genetic resources [, as well as the exploitation thereof].]

[15. Alt. 2. “Utilization of resources” means the taking, harvesting, recovery, extraction, collection, analysis, processing or use for commercial purposes, or that results in commercial advantage, of or from resources of actual or potential value located in areas beyond national jurisdiction.]

Article 2

Objective

The objective of this Agreement is to ensure the long-term conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction through effective implementation of the relevant provisions of the Convention and further international cooperation and coordination.

Article 3

Application

1. The provisions of this Agreement apply to areas beyond national jurisdiction.
2. This Agreement does not apply to any warship, naval auxiliary, other vessels or aircraft owned or operated by a State and used, for the time being, only on government non-commercial service. However, each State shall ensure, by the adoption of appropriate measures not impairing the operations or operational capabilities of such vessels or aircraft owned or operated by it, that such vessels or aircraft act in a manner consistent, so far as is reasonable and practicable, with this Agreement.

Article 4

Relationship between this Agreement and the Convention and other [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies

1. Nothing in this Agreement shall prejudice the rights, jurisdiction and duties of States under the Convention. This Agreement shall be interpreted and applied in the context of and in a manner consistent with the Convention.
2. The rights and jurisdiction of coastal States over all areas under national jurisdiction, including the continental shelf within and beyond 200 nautical miles and the exclusive economic zone, shall be respected in accordance with the Convention.
3. This Agreement shall be interpreted and applied in a manner that [respects the competences of and] does not undermine [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies, and that promotes coherence and coordination with those instruments, frameworks and bodies, provided that they are supportive of and do not run counter to the objectives of the Convention and this Agreement.
- [4. The provisions of this Agreement are not intended to affect the legal status of non-Parties to the Convention or any other related agreements with regard to those instruments.]

Article 5

General [principles] [and] [approaches]

In order to achieve the objective of this Agreement, States Parties shall:

- [(a) Apply an integrated approach [/principle];]
- (b) Apply an approach that builds ecosystem resilience to the adverse effects of climate change and ocean acidification and restores ecosystem integrity;
- (c) Act so as not to transfer, directly or indirectly, damage or hazards from one area to another or transform one type of pollution into another;
- (d) Endeavour to promote the internalization of environmental costs and the use of economic instruments, taking into account the approach that the polluter should [, in principle,] bear the cost of pollution, with due regard to the public interest and without distorting international trade and investment;
- [(e) Ensure accountability;]
- [(f) Be guided by the principle of non-regression;]
- [(g) Take into consideration flexibility, pertinence and effectiveness.]

Article 6

International cooperation

1. States Parties shall cooperate for the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, including through strengthening and enhancing cooperation among existing relevant legal instruments and frameworks and relevant global, regional and sectoral bodies in the achievement of the objective of this Agreement.
2. States Parties shall promote international cooperation in marine scientific research in accordance with articles 242 to 244 of the Convention, and in the development and transfer of marine technology in accordance with articles 270 to 274 of the Convention in the achievement of the objective of this Agreement.
- [3. States Parties shall cooperate to establish new global, regional and sectoral bodies, where necessary, to fill governance gaps.]

PART II

MARINE GENETIC RESOURCES, INCLUDING QUESTIONS ON THE SHARING OF BENEFITS

Article 7

Objectives

The objectives of this Part are to:

- [(a) Build the capacity of developing States Parties, in particular least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States and developing middle-income countries, to access and utilize marine genetic resources of areas beyond national jurisdiction;]
- [(b) Promote the generation of knowledge and technological innovations, including by promoting and facilitating the development and conduct of marine

scientific research in areas beyond national jurisdiction, in accordance with the Convention;]

[(c) Promote the [fair and equitable] sharing of benefits arising from the utilization of marine genetic resources of areas beyond national jurisdiction;]

[(d) Promote the development and transfer of marine technology [, subject to all legitimate interests, including, inter alia, the rights and duties of holders, suppliers and recipients of marine technology];]

[(e) Contribute to the realization of a just and equitable international economic order.]

[Article 8 Application of the provisions of this [Part] [Agreement]]

[1. The provisions of this [Part] [Agreement] shall apply to marine genetic resources [of] [accessed in] [originating from] areas beyond national jurisdiction.]

[2. The provisions of this [Part] [Agreement] shall apply to:

[(a) [The use of fish [samples] and other biological resources for research into their genetic properties] [Marine genetic resources, including fish, insofar as they are collected for the purposes of being the subject of research into their genetic properties];]

(b) Marine genetic resources collected *in situ* [and [accessed] [obtained] *ex situ* [and [*in silico*] [[and] [as] [digital] [genetic] sequence data [and information]]]];

[(c) Derivatives.]]

[3. The provisions of this [Part] [Agreement] shall not apply to:

[(a) [The use of fish and other biological resources as a commodity.] [Fish and other biological resources that are collected beyond a threshold amount shall be considered as a commodity. The threshold amount shall be determined by the [Scientific and Technical [Body] [Network]].] [If a species of fish is found to have value for its genetic material, that species shall be treated as a marine genetic resource, regardless of the volume of the catch.] [If a species of fish or other biological resources are found to have value for their genetic material, that species or those resources, where utilized for their genetic material, shall be treated as a marine genetic resource;]]

[(b) Marine genetic resources [accessed] [obtained] *ex situ* [or [*in silico*] [[and] [as] [digital] [genetic] sequence data [and information]]];]

[(c) Derivatives;]

[(d) Marine scientific research.]]

[4. The provisions of this Agreement shall apply to marine genetic resources accessed *in situ*, *ex situ* [and [*in silico*] [[and] [as] [digital] [genetic] sequence data [and information]]] after its entry into force, including those resources accessed *in situ* before its entry into force, but [accessed] [or utilized] *ex situ* or [*in silico*] [[and] [as] [digital] [genetic] sequence data [and information]] after it.]

**[Article 9
Activities with respect to marine genetic resources of areas beyond
national jurisdiction]**

- [1. Activities with respect to marine genetic resources of areas beyond national jurisdiction may be carried out by all States and their natural or juridical persons under the conditions laid down in this Agreement and with due regard for the rights, obligations and interests under the Convention.]
- [2. In cases where marine genetic resources of areas beyond national jurisdiction are also found in areas within national jurisdiction, activities with respect to those resources shall be conducted with due regard for the rights and legitimate interests of any coastal State under the jurisdiction of which such resources are found.]
- [3. No State shall claim or exercise sovereignty or sovereign rights over marine genetic resources of areas beyond national jurisdiction [, nor shall any State or natural or juridical person appropriate any part thereof]. No such claim or exercise of sovereignty or sovereign rights [nor such appropriation] shall be recognized.]
- [4. The utilization of marine genetic resources of areas beyond national jurisdiction shall be for the benefit of mankind as a whole, taking into consideration the interests and needs of developing States, in particular the least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States and developing middle-income countries.]
- [5. Activities with respect to marine genetic resources of areas beyond national jurisdiction shall be carried out exclusively for peaceful purposes.]

**[Article 10
Access to marine genetic resources of areas beyond
national jurisdiction]**

- [1. *In situ* access to marine genetic resources within the scope of this Part shall be subject to [Alt. 1. [prior] notification to the secretariat [, which shall include an indication of the location and date of access, the resources to be accessed, the purposes for which the resources will be utilized and the entity that will access the resources] [of access to marine genetic resources of areas beyond national jurisdiction].]
- [Alt. 2. a [permit] [licence] issued in the manner and under the terms and conditions set forth in paragraph 2.]]
- [2. States Parties shall take the necessary legislative, administrative or policy measures, as appropriate, to ensure that *in situ* access to marine genetic resources within the scope of this Part shall be subject to:
- (a) An indication of the geographical coordinates of the location where marine genetic resources were accessed;
 - (b) Capacity-building;
 - (c) The transfer of marine technology;
 - (d) The deposit of samples, data and related information in open source platforms, such as databases, repositories or gene banks;
 - (e) Contributions to the special fund;
 - (f) Environmental impact assessments;

(g) Other relevant terms and conditions as may be determined by the Conference of the Parties, including in relation to access to marine genetic resources in ecologically and biologically significant areas, vulnerable marine ecosystems and other specially protected areas, in order to ensure the conservation and sustainable use of the resources therein.]

[3. States Parties shall take the necessary legislative, administrative or policy measures, as appropriate, to ensure that *ex situ* access to marine genetic resources within the scope of this Part is free and open [, subject to articles 11 and 13].]

[4. States Parties shall take the necessary legislative, administrative or policy measures, as appropriate, to ensure that access to [*in silico* information and data] [[and] [digital] [genetic] sequence data [and information]] is facilitated [, subject to articles 11 and 13].]

[5. States Parties shall take the necessary legislative, administrative or policy measures, as appropriate, to ensure that activities with respect to marine genetic resources of areas beyond national jurisdiction that may result in the utilization of marine genetic resources found in areas both within and beyond national jurisdiction are subject to the prior [consent] [,] [notification and consultation] of the coastal States [and any other relevant State] concerned, with a view to avoiding infringement of the rights and legitimate interests of [that] [those] State[s].]

[6. States Parties shall take the necessary legislative, administrative or policy measures, as appropriate, with the aim of ensuring that traditional knowledge [associated with marine genetic resources of areas beyond national jurisdiction that is held by indigenous peoples and local communities] [of indigenous peoples and local communities that is useful for unlocking the value of marine genetic resources of areas beyond national jurisdiction] is accessed with the prior informed consent or approval and involvement of those indigenous peoples and local communities, and that mutually agreed terms have been established.]

[7. States Parties shall take the necessary legislative, administrative or policy measures, as appropriate, to ensure that marine genetic resources of areas beyond national jurisdiction utilized within their jurisdiction have been accessed in accordance with this Part.]

[Article 11 [Fair and equitable] sharing of benefits]

[1. States Parties, including their nationals, that have [accessed] [utilized] marine genetic resources of areas beyond national jurisdiction [shall] [may] share benefits arising therefrom [in a fair and equitable manner] with other States Parties, with consideration for the special requirements of developing States Parties, in particular least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States and developing middle-income countries [, [in accordance with this Part] [and] [modalities to be determined by the Conference of the Parties]].]

[2. Benefits may include [monetary and] non-monetary benefits.]

[3. Benefits arising from the [access to] [utilization of] marine genetic resources of areas beyond national jurisdiction shall be shared at different stages, in accordance with the following provisions:

[(a) Monetary benefits [shall] [may] be shared against an embargo period for [digital] [genetic] sequence data [and information] or upon the commercialization of products that are based on marine genetic resources of areas beyond national

jurisdiction [in the form of milestone payments]. The rate of payments of monetary benefits shall be determined by the Conference of the Parties. [Payments shall be made to the special fund];]

[(b) Non-monetary benefits [, such as access to samples and sample collections, sharing of information, such as pre-cruise or pre-research information, post-cruise or post-research notification, transfer of technology and capacity-building,] [shall] [may] be shared upon access to, research on and utilization of marine genetic resources of areas beyond national jurisdiction. Samples, data and related information shall be made available in open access [through the clearing-house mechanism [upon access] [after [...] years]]. [[Digital] [Genetic] sequence data [and information] related to marine genetic resources of areas beyond national jurisdiction shall be published and used taking into account current international practice in the field.]]

[4. Benefits shared in accordance with this Part shall be used in the manner determined by the Conference of the Parties, which may include using the benefits for the following purposes:

[(a) To contribute to the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction;]

[(b) To promote scientific research and facilitate access to marine genetic resources of areas beyond national jurisdiction;]

[(c) To build capacity to access and utilize marine genetic resources of areas beyond national jurisdiction [, including through common funding or pool funding for research cruises and collaboration in sample collection and data access where adjacent coastal States may be invited to participate, taking into account the varying economic circumstances of States that wish to participate];]

[(d) To create and strengthen the capacity of States Parties to conserve and use sustainably marine biological diversity of areas beyond national jurisdiction, with a focus on small island developing States;]

[(e) To support the transfer of marine technology;]

[(f) To assist developing States Parties in attending the meetings of the Conference of the Parties.]]

[5. States Parties shall take the necessary legislative, administrative or policy measures, as appropriate, with the aim of ensuring that benefits arising from access to and the utilization of marine genetic resources of areas beyond national jurisdiction by natural or judicial persons under their jurisdiction are shared in accordance with this Agreement.]

[6. States Parties shall take the necessary legislative, administrative or policy measures, as appropriate, in order that the benefits arising from the utilization of traditional knowledge referred to in article 10, paragraph 6, are shared in a fair and equitable way with indigenous peoples and local communities holding such knowledge.]

[Article 12 Intellectual property rights]

[1. States Parties shall implement this Agreement in a manner consistent with the rights and obligations of States under the relevant agreements concluded under the auspices of the World Intellectual Property Organization and the World Trade Organization.]

[2. States Parties shall cooperate to ensure that intellectual property rights are supportive of and do not run counter to the objectives of this Agreement [, and that no action is taken in the context of intellectual property rights that would undermine benefit-sharing and the traceability of marine genetic resources of areas beyond national jurisdiction].]

[3. [Marine genetic resources [accessed] [utilized] in accordance with this Agreement shall not be subject to patents except where such resources are modified by human intervention resulting in a product capable of industrial application.] [Unless otherwise stated in a patent application or other official filing or recognized public registry, the origin of marine genetic resources utilized in patented applications shall be presumed to be of areas beyond national jurisdiction.]]

[4. States Parties shall take the necessary legislative, administrative or policy measures, as appropriate, to ensure that:

(a) [Users of] [Applicants for patents on inventions that utilize or have utilized] marine genetic resources of areas beyond national jurisdiction disclose the origin of the marine genetic resources that they utilize;

(b) When [applying for patents, entities] [applications for patents on inventions that utilize or have utilized marine genetic resources of areas beyond national jurisdiction are made, applicants] consult the Scientific and Technical [Body] [Network] and propose benefit-sharing agreements in accordance with this Part [and comply with the decisions on benefit-sharing delivered by that [Body] [Network]];

(c) Intellectual property rights applications related to the utilization of marine genetic resources of areas beyond national jurisdiction that do not comply with this Part are not approved.]

[Article 13 Monitoring]

[1. The Conference of the Parties shall adopt appropriate rules, guidelines or a code of conduct for the utilization of marine genetic resources of areas beyond national jurisdiction.]

[2. Monitoring of the utilization of marine genetic resources of areas beyond national jurisdiction shall be carried out through the [clearing-house mechanism] [Scientific and Technical [Body] [Network]] [obligatory prior electronic notification system managed by [the secretariat] [the secretariat and mandated existing international institutions set forth in Part [...]]].]

[3. States Parties shall take the necessary legislative, administrative or policy measures, as appropriate, to ensure that:

[(a) An identifier is assigned to marine genetic resources collected *in situ*. In the case of marine genetic resources accessed *ex situ* [and *in silico*] [[and] [as] [digital] [genetic] sequence data [and information]], such identifier shall be assigned when databases, repositories and gene banks submit the list mentioned in article 51 (3) (b) to the clearing-house mechanism;]

[(b) Databases, repositories and gene banks within their jurisdiction are required to [notify the [clearing-house mechanism] [Scientific and Technical [Body] [Network]]] [send a notification through the obligatory prior electronic notification system managed by [the secretariat] [the secretariat and mandated existing international institutions set forth in Part [...]]] when marine genetic resources of areas beyond national jurisdiction, including derivatives, are accessed;]

[(c) Proponents of marine scientific research in areas beyond national jurisdiction submit periodic status reports [to the clearing-house mechanism] [to the Scientific and Technical [Body] [Network]] [through the obligatory prior electronic notification system managed by [the secretariat] [the secretariat and mandated existing international institutions set forth in Part [...]]], as well as research findings, including data collected and all associated documentation.]]

[4. States Parties shall make available to the clearing-house mechanism information on the legislative, administrative and policy measures that have been adopted in accordance with this Part.]

[5. States Parties shall submit reports to the Conference of the Parties about their utilization of marine genetic resources of areas beyond national jurisdiction. The Conference shall review such reports and make recommendations.]

PART III

MEASURES SUCH AS AREA-BASED MANAGEMENT TOOLS, INCLUDING MARINE PROTECTED AREAS

Article 14

Objectives

1. Depending on the type of tool, specific objectives of area-based management tools, including marine protected areas, may include, as appropriate:

[(a) Enhancing cooperation and coordination in the use of area-based management tools, including marine protected areas, among States, [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies;]

[(b) Implementing effectively obligations under the Convention and other existing international obligations and commitments;]

[(c) Promoting a holistic and cross-sectoral approach to ocean management;]

[(d) Conserving and sustainably using areas requiring protection [under [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies];]

[(e) Establishing a system of ecologically representative marine protected areas that are connected [and effectively and equitably managed];]

[(f) Rehabilitating and restoring biodiversity and ecosystems, including with a view to enhancing their productivity and health and building resilience to stressors, including those related to climate change, ocean acidification and marine pollution;]

[(g) Supporting food security and other socioeconomic objectives, including the protection of cultural values;]

[(h) Creating scientific reference areas for baseline research;]

[(i) Safeguarding aesthetic, natural or wilderness values;]

[(j) Establishing a comprehensive system of area-based management tools, including marine protected areas;]

[(k) Promoting coherence and complementarity;]

[(l) Promoting cooperation under the Convention.]

2. The objectives specified in paragraph 1 shall be further elaborated by the Scientific and Technical [Body] [Network], for consideration by the Conference of the Parties.

Article 15

International cooperation and coordination

1. To further international cooperation and coordination with respect to the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, States Parties shall promote coherence and complementarity in the [establishment] [designation] of area-based management tools, including marine protected areas, through:

[(a) [Existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies, without prejudice to their respective mandates, in accordance with this Part;]

[(b) The process in relation to area-based management tools, including marine protected areas, set out in this Part, including by:

(i) Adopting conservation and management measures to complement measures designated under [existing] relevant legal instruments and frameworks and relevant global, regional or sectoral bodies;

[(ii) [Establishing] [Designating] area-based management tools, including marine protected areas, and adopting conservation and management measures where there is no relevant legal instrument or framework or relevant global, regional or sectoral body.]]

[2. Alt. to para. 1. (b) (ii) Where there is no [existing] relevant legal instrument or framework or relevant global, regional or sectoral body to [establish] [designate] area-based management tools, including marine protected areas, States Parties shall cooperate to establish such an instrument, framework or body and shall participate in its work to ensure the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction.]

3. States Parties shall establish [coordination and collaboration mechanisms] [consultation processes] at the [global] [and] [regional] level[s] to enhance cooperation and coordination among [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies with regard to area-based management tools, including marine protected areas, as well as coordination among associated conservation and management measures adopted under such instruments and frameworks and by such bodies.

4. In promoting cooperation and coordination under this article, States Parties shall not undermine [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies.

5. Measures adopted in accordance with this Part shall not undermine the effectiveness of measures adopted by coastal States in adjacent areas within national jurisdiction and shall have due regard for the rights, duties and legitimate interests of all States, as reflected in relevant provisions of the Convention. Consultations shall be undertaken to this end, in accordance with the provisions of this Part.

6. In cases where an area-based management tool, including a marine protected area, [established] [designated] under this Part subsequently falls under the national jurisdiction of a coastal State, either wholly or in part, that area-based management

tool or marine protected area shall be amended to cover any remaining area beyond national jurisdiction or otherwise cease to be in force.

Article 16

Identification of areas requiring protection

1. Areas requiring protection through the [establishment] [designation] of area-based management tools, including marine protected areas, shall be identified on the basis of the best available science, the precautionary [approach] [principle] and an ecosystem approach and take into account relevant traditional knowledge of indigenous peoples and local communities.

2. Criteria for the identification of areas requiring protection through the [establishment] [designation] of area-based management tools, including marine protected areas, under this Part may include:

- [(a) Uniqueness;]
- [(b) Rarity;]
- (c) Special importance for the life history stages of species;
- (d) Special importance of the species found therein;
- (e) The importance for threatened, endangered or declining species or habitats;
- (f) Vulnerability;
- (g) Fragility;
- (h) Sensitivity;
- [(i) Biological productivity;]
- (j) Biological diversity;
- [(k) Representativeness;]
- (l) Dependency;
- [(m) Exceptional naturalness;]
- [(n) Ecological connectivity and/or coherence;]
- [(o) Important ecological processes occurring therein;]
- (p) Economic and social factors;
- [(q) [The adverse impacts of climate change and ocean acidification]
[Vulnerability to climate change];]
- [(r) Cumulative and transboundary impacts;]
- (s) Slow recovery;
- (t) Adequacy and viability;
- (u) Replication;
- (v) Feasibility.

3. The criteria specified in paragraph 2 shall be further developed and revised by the Scientific and Technical [Body] [Network], as necessary, for consideration by the Conference of the Parties.

4. The criteria specified in paragraph 2, as well as any that may be further developed and revised in accordance with paragraph 3, shall be applied by the Scientific and Technical [Body] [Network] in the identification of areas requiring protection through the [establishment] [designation] of area-based management tools, including marine protected areas, under this Part. Such criteria shall also be [applied] [taken into account] by States Parties in the [establishment] [designation] of area-based management tools, including marine protected areas, under [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies.

Article 17

Proposals

1. Proposals in relation to [[the establishment] [the designation] of] area-based management tools, including marine protected areas, under this Part shall be submitted by States Parties, individually or collectively, to the secretariat.

2. States Parties may collaborate with relevant stakeholders in the development of proposals.

3. Proposals shall be based on the best available science, apply the precautionary [approach] [principle] and an ecosystem approach and take into account the relevant traditional knowledge of indigenous peoples and local communities.

4. Proposals shall include the following elements:

(a) A geographic or spatial description of the area that is the subject of the proposal;

(b) Information on the standards and criteria applied in identifying the area;

(c) Specific human activities in the area, including uses by local communities in adjacent coastal States;

(d) Elements on the state of the marine environment and biodiversity in the identified area;

(e) A description of the conservation and sustainable use objectives set out in paragraph 1 of article 14 that are to be applied to the area;

[(f) A description of the proposed [conservation and management measures] [management plan] to be adopted to achieve the specified objectives;]

(g) A monitoring, research and review plan, including priority elements;

(h) Information on any consultations undertaken with adjacent coastal States and/or relevant global, regional and sectoral bodies.

5. Further requirements regarding the contents of proposals shall be elaborated by the Scientific and Technical [Body] [Network] as necessary, for consideration by the Conference of the Parties.

Article 18

Consultation on and assessment of proposals

1. Consultations on proposals submitted under article 17 shall be inclusive, transparent and open to all relevant stakeholders.

2. Upon receipt of a proposal, the secretariat shall make that proposal publicly available and shall facilitate consultations thereon as follows:

(a) States, in particular adjacent coastal States, shall be invited to submit views, including:

- (i) Views on the merits of the proposal;
- (ii) Any relevant additional scientific inputs;
- (iii) Information regarding any existing measures in adjacent areas within national jurisdiction;
- (iv) Views on the potential implications of the proposal on sovereign rights of coastal States in areas within their national jurisdiction, including the continental shelf within and beyond 200 nautical miles and the exclusive economic zone;
- (v) Any other relevant information;

(b) [Existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies shall be invited to submit views, including:

- (i) Views on the merits of the proposal;
- (ii) Any relevant additional scientific inputs;
- (iii) Information regarding any existing measures adopted by that instrument, framework or body for the relevant area or for adjacent areas;
- (iv) Views regarding any aspects of the conservation and management measures identified in the proposal that fall within the competence of that body;
- (v) Views regarding any relevant additional measures that fall within the competence of that instrument, framework or body;
- (vi) Any other relevant information;

(c) Indigenous peoples and local communities with relevant traditional knowledge, the scientific community, civil society and other relevant stakeholders shall be invited to submit views, including:

- (i) Views on the merits of the proposal;
- (ii) Any relevant additional scientific inputs;
- (iii) Any relevant traditional knowledge;
- (iv) Any other relevant information.

3. Any contributions received pursuant to paragraph 2 shall be made publicly available by the secretariat.

4. The proponent shall consider the contributions received during the consultation period and shall either revise the proposal accordingly or continue the consultation process.

5. The consultation period shall be time-bound.

6. The revised proposal shall be submitted to the Scientific and Technical [Body] [Network], which shall assess the proposal, and make recommendations to the Conference of the Parties.

7. The modalities of the consultation and assessment process shall be further elaborated by the [Scientific and Technical [Body] [Network]] [Conference of the

Parties], as necessary [, and shall take into account the special circumstances of small island developing States].

Article 19

Decision-making

[1. While respecting [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies in the [establishment] [designation] of area-based management tools, including marine protected areas, the Conference of the Parties shall take decisions on matters related to area-based management tools, including marine protected areas, with respect to:

(a) Objectives, criteria, modalities and requirements, as provided for under articles 14, 16[,] [and] 17 [and 18];

[Alt. 1

(b) Proposals submitted under this Part, on a case-by-case basis and taking into account the scientific advice or recommendations and the contributions received during the consultation and assessment process, including in relation to:

(i) The identification of areas requiring protection;

(ii) The [designation] [establishment] of area-based management tools, including marine protected areas, and related conservation and management measures to be adopted to achieve the specified objectives, [taking into account] [recognizing] existing measures under relevant legal instruments and frameworks and relevant global, regional and sectoral bodies, as appropriate;

(c) Where there are [existing] relevant legal instruments or frameworks or relevant global, regional or sectoral bodies:

(i) Whether to recommend that States Parties to this Agreement promote the adoption of relevant measures through such instruments, frameworks and bodies, in accordance with their respective mandates;

(ii) Whether to adopt measures complementary to those adopted under such instruments, frameworks and bodies;

(d) Where there are no [existing] relevant legal instruments or frameworks or relevant global, regional or sectoral bodies, the adoption of conservation and management measures.]

[Alt. 2

(b) Matters related to identifying potential area-based management tools, including marine protected areas;

(c) Recommendations relating to the implementation of related management measures, while recognizing the primary authority for the adoption of such measures within the respective mandates of [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies;]

2. As a general rule, the decisions of the Conference of the Parties referred to in paragraph 1 shall be taken by consensus. If all efforts to reach consensus have been exhausted, the procedure established in the rules of procedure adopted by the Conference shall apply.

3. Decisions of the Conference of the Parties shall be made publicly available by the secretariat and shall be transmitted, in particular, to adjacent coastal States and

[existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies.

Article 20

Implementation

1. States Parties shall ensure that activities under their jurisdiction or control that take place in areas beyond national jurisdiction are conducted consistently with the decisions adopted under this Part.

2. Nothing in this Agreement shall prevent a State Party from adopting stricter measures with respect to its vessels or with regard to activities under its jurisdiction or control in addition to those adopted under this Part, in conformity with international law.

[3. States Parties shall ensure compliance by vessels flying their flags and enforcement of the measures adopted in conformity with this Part [by their nationals].]

[4. The implementation of the measures adopted under this Part shall not impose a disproportionate burden on small island developing States Parties.]

[5. States Parties shall promote the adoption of measures within [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies of which they are members to support the implementation of the conservation and management objectives of the measures adopted under this Part.]

[6. States Parties shall encourage those States that are entitled to become Parties to this Agreement, in particular those whose activities, vessels, or nationals operate in the area that is the subject of a[n] [established] [designated] area-based management tool, including a marine protected area, to adopt measures supporting the conservation and management objectives of the measures adopted and area-based management tools [established] [designated] under this Part.]

[7. The [existing] relevant legal instruments and frameworks and relevant global, regional or sectoral bodies are responsible for the implementation and enforcement of the conservation and management measures established by those bodies in relation to area-based management tools, including marine protected areas.]

[8. A State Party that is not a participant in a[n] [existing] relevant legal instrument or framework, or a member of a relevant global, regional or sectoral body, and that does not otherwise agree to apply the conservation and management measures [established] [designated] under such instruments, frameworks or bodies is not discharged from the obligation to cooperate, in accordance with the Convention and this Agreement, in the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction. Such State Party shall ensure that activities under its jurisdiction or control are conducted consistently with measures related to area-based management tools, including marine protected areas, [established] [designated] under relevant frameworks, instruments and bodies.]

Article 21

Monitoring and review

[Alt.1

1. States Parties, individually or collectively, shall report to the Conference of the Parties on the implementation of [area-based management tools, including marine

protected areas] [relevant elements of the decisions of the Conference on area-based management tools, including marine protected areas], [established] [designated] under this Part. Such reports shall be made publicly available by the secretariat.

2. Area-based management tools, including marine protected areas, [established] [designated] under this Part, including related conservation and management measures, shall be monitored and periodically reviewed by the Scientific and Technical [Body] [Network].

3. The review referred to in paragraph 2 shall assess the effectiveness of measures and the progress made in achieving their objectives and provide advice and recommendations to the Conference of the Parties.

4. Following the review, the Conference of the Parties shall, as necessary, take decisions on the amendment or revocation of area-based management tools, including marine protected areas, including any associated conservation and management measures, on the basis of an adaptive management approach and taking into account the best available scientific information and knowledge, including traditional knowledge, the precautionary [approach] [principle] and an ecosystem approach.]

[Alt.2

States Parties shall monitor the implementation of measures and report to the secretariat on the relevant activities with associated data within the required time frame after the monitoring activity. The State submitting the proposals should take the lead in monitoring the measures, while other States Parties may monitor them and report thereon. The duration of marine protected areas and related conservation and management measures shall be specified. These areas and related measures shall terminate automatically upon the expiration of the time period, unless otherwise decided by the same body that decided on the initial [establishment] [designation]. Any decision on their extension shall take into account the results of monitoring and review and be informed by the best available scientific information and knowledge, including traditional knowledge.]

[Alt.3

The [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies are responsible for monitoring and reviewing the measures that they have established and shall be invited to report to the Conference of the Parties on the implementation of such measures.]

PART IV ENVIRONMENTAL IMPACT ASSESSMENTS

Article 22 Obligation to conduct environmental impact assessments

1. States Parties shall [as far as practicable] assess the potential effects of planned activities under their jurisdiction or control [on the marine environment] [in accordance with their obligations under articles 204 to 206 of the Convention].

2. On the basis of articles 204 to 206 of the Convention, States Parties shall take the necessary legal, administrative or policy measures, as appropriate, to implement the provisions [of this Part] [and any further measures [on the conduct of environmental impact assessments] decided by the Conference of the Parties [, including, but not limited to, requiring any proponent of a planned activity falling under its jurisdiction or control to conduct an environmental impact assessment for

an activity that meets the threshold requirement for such an assessment, as set out in this Part]].

3. The requirement in this Part to conduct an environmental impact assessment applies [only to activities conducted in areas beyond national jurisdiction] [to all activities that have an impact in areas beyond national jurisdiction].

Article 23

Relationship between this Agreement and environmental impact assessment processes under other [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies

1. The conduct of environmental impact assessments pursuant to this Agreement shall be consistent with the obligations under the Convention.

2. The environmental impact assessment process set out in this Agreement shall not undermine existing relevant legal instruments and frameworks and relevant global, regional and sectoral bodies. [To that end, the provisions of this Agreement shall be interpreted in such a manner as to respect the obligations under other [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies, and be mutually supportive, in order to achieve a coherent environmental impact assessment framework for activities in areas beyond national jurisdiction.]

[3. Alt. 1. The Scientific and Technical [Body] [Network] shall consult and/or coordinate with [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies with a mandate to regulate activities [with impacts] in areas beyond national jurisdiction or to protect the marine environment. [Procedures for consultation and/or coordination shall include the establishment of an ad hoc interagency working group or the participation of representatives of the scientific and technical bodies of those organizations in meetings of the Scientific and Technical [Body] [Network].]

[3. Alt. 2. States shall cooperate in promoting the use of environmental impact assessments in relevant legal instruments and frameworks and relevant global, regional and sectoral bodies for planned activities that meet or exceed the threshold contained in this Agreement.]

[4. Alt. 1. [Global minimum standards] [and] [guidelines] for the conduct of environmental impact assessments [under [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies] shall be developed [by the Scientific and Technical [Body] [Network]] [through consultation or collaboration with [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies]. [These [global minimum standards] [and] [guidelines] shall be set out in an annex to this Agreement and shall be updated periodically].]

[4. Alt. 2. The provisions of this Part constitute global minimum standards for environmental impact assessments for areas beyond national jurisdiction.]

[5. Alt. 1. [Existing relevant] [Relevant] legal instruments and frameworks and relevant global, regional and sectoral bodies with a mandate in relation to marine biological diversity of areas beyond national jurisdiction shall conform to the strict environmental impact assessment standards set forth in this Part.]

[5. Alt. 2. No environmental impact assessment is required under this Agreement for any activity conducted in accordance with the rules and guidelines appropriately established under [existing] relevant legal instruments and frameworks and by

relevant global, regional and sectoral bodies, regardless of whether or not an environmental impact assessment is required under those rules or guidelines.]

[5. Alt. 3. No environmental impact assessment is required under this Agreement where relevant legal instruments and frameworks and relevant global, regional or sectoral bodies with mandates for environmental impact assessments for planned activities [with impacts] in areas beyond national jurisdiction already exist, regardless of whether or not an environmental impact assessment is required for the planned activity.]

[5. Alt. 4. Where a planned activity [with impacts] in areas beyond national jurisdiction is already covered by existing environmental impact assessment obligations and agreements, it is not necessary to conduct another environmental impact assessment of that activity under this Agreement [, provided that the [State with jurisdiction or control over the planned activity] [body set forth in Part [...]] [, following consultation with [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies,] determines that:

[(a) The outcome of environmental impact assessment under those obligations or agreements is effectively implemented;]

[(b) The environmental impact assessment already undertaken is [[functionally] [substantively] equivalent to the one required under this Part] [comparably comprehensive, including with regard to such elements as the assessment of cumulative impacts];]

[(c) The threshold for the conduct of environmental impact assessments meets or exceeds the threshold set out in this Part.]]

Article 24

Thresholds and criteria for environmental impact assessments

[Alt.1

When States have reasonable grounds for believing that planned activities under their jurisdiction or control [may cause substantial pollution of or significant and harmful changes to] [are likely to have more than a minor or transitory effect on] the marine environment [in areas beyond national jurisdiction], they shall, [individually or collectively,] as far as practicable, [assess the potential effects of such activities on the marine environment] [ensure that the potential effects of such activities on the marine environment are assessed].]

[Alt.2

1. When States Parties have reasonable grounds for believing that planned activities under their jurisdiction or control are likely to have more than a minor or transitory effect on the marine environment, they shall conduct a[n] [initial] [simplified] environmental impact assessment on the potential effects of such activities on the marine environment in the manner provided in this Part.

2. When States Parties have reasonable grounds for believing that planned activities under their jurisdiction or control may cause substantial pollution of or significant and harmful changes to the marine environment, they shall [conduct] [ensure that] a [full] [comprehensive] environmental impact assessment [is conducted] on the potential effects of such activities on the marine environment [and ecosystems] and shall [communicate] [submit] the results of such assessments [for technical review] in the manner provided in this Part.]

[Alt.3

Environmental impact assessments shall be conducted in accordance with the threshold and criteria [set out in this Part and as further elaborated upon pursuant to the procedure set out in paragraph [...] [, which shall be developed by the [Scientific and Technical [Body] [Network]]].

Article 25

Cumulative impacts

[1. Cumulative impacts shall [as far as possible] be [taken into account] [considered] in the conduct of environmental impact assessments.]

[2. Alt. 1. The process for assessing cumulative impacts in areas beyond national jurisdiction and how those impacts will be taken into account in the environmental impact assessment process for planned activities shall be developed by the Conference of the Parties.]

[2. Alt. 2. In determining cumulative impacts, the incremental effect of a planned activity when added to the effects of past, present and reasonably foreseeable future activities shall be examined regardless of whether the State Party exercises jurisdiction or control over those other activities.]

Article 26

Transboundary impacts

[1. Possible transboundary impacts shall be taken into account in environmental impact assessments.]

[2 Where relevant, the environmental impact assessment process shall also take into account possible impacts in [adjacent [areas] [coastal States] [areas within national jurisdiction, including the continental shelf beyond 200 nautical miles]].]

Article 27

Areas identified as ecologically or biologically significant or vulnerable

[1. A lower threshold, as set out in article [...], shall apply to the conduct of environmental impact assessments for activities undertaken in areas identified as ecologically or biologically significant or vulnerable.]

[2. Alt. 1. Environmental impact assessments for planned activities to be undertaken in areas identified as ecologically or biologically significant or vulnerable shall be conducted in accordance with the following provisions: [...].]

[2. Alt. 2. Guidelines on the conduct of environmental impact assessments in [or adjacent to] areas identified as ecologically or biologically significant or vulnerable shall be elaborated by the Conference of the Parties.]

[2. Alt. 3. Environmental impact assessments shall be conducted in existing marine protected areas or areas that may require protection in accordance with the relevant international agreements applicable to those areas.]

Article 28

Strategic environmental assessments

- [1. States Parties, individually or in cooperation with other States Parties, shall ensure that a strategic environmental assessment is carried out for plans and programmes relating to activities [under their jurisdiction or control,] [conducted] [with impacts] in areas beyond national jurisdiction, which meet the threshold/criteria established in article 24.]
- [2. As one type of environmental assessment, strategic environmental assessments shall follow mutatis mutandis the process set out in this Part.]

Article 29

List of activities that [require] [or] [do not require] an environmental impact assessment

- [1. An indicative non-exhaustive list of activities that [normally] [require] [or] [do not require] an environmental impact assessment [is contained in annex [...]] [shall be prepared by the Conference of the Parties as voluntary guidelines on the basis of recommendations by the Scientific and Technical [Body] [Network]].]
- [2. The list shall be regularly updated by the Conference of the Parties.]

Article 30

Screening

- [1. [A State Party] [The proponent of the planned activity] shall [determine] [be responsible for determining] whether an environmental impact assessment is required in respect of [a planned activity under its jurisdiction or control] [the planned activity].]
- [2. The initial screening of activities shall consider the characteristics of the area where the planned activity is intended to take place, as well as where the potential effects are going to be felt. Should the planned activity take place in or adjacent to an area that has been identified for its significance or vulnerability, regardless of whether the impacts are expected to be minimal or not, an environmental impact assessment shall be required.]
- [3. If [a State Party determines that an environmental impact assessment is not required for a planned activity under its jurisdiction or control] [the proponent determines that an environmental impact assessment for a planned activity is not required], [the approval of the Scientific and Technical [Body] [Network] must be obtained] [it must provide information to support that conclusion]. [The Scientific and Technical [Body] [Network] shall verify that the information provided by the [State Party] [proponent of the planned activity] satisfies the requirements in this Part.]]

Article 31

Scoping

- [1. States Parties shall establish procedures to define the scope of the environmental impact assessments that shall be conducted [under the provisions of this Part].]

[2. Such scope shall include the identification of key environmental [, social, economic, cultural and other relevant] [impacts] [issues], including [identified cumulative impacts], using the best available scientific information and traditional knowledge [, alternatives for analysis] [and a determination of the potential effects of the planned activity, including a detailed description of potential environmental consequences].]

Article 32

Impact assessment and evaluation

[1. A [State Party that has determined that a planned activity under its jurisdiction or control] [proponent that has determined that a planned activity] requires an environmental impact assessment under this Agreement shall ensure that the prediction and evaluation of impacts in such an assessment is conducted in accordance with this Part, using the best available scientific information and traditional knowledge [, and an examination of alternatives].]

[2. Nothing in this Part precludes States Parties, in particular small island developing States, from conducting joint environmental impact assessments.]

[3. Alt. 1. A State Party may designate a third party to conduct an environmental impact assessment required under this Agreement. Environmental impact assessments conducted by such third parties must be submitted to the State for review and decision-making.]

[3. Alt. 2. The environmental impact assessment shall be conducted by an independent consultant appointed by a panel of experts designated by the Scientific and Technical [Body] [Network].]

[4. A pool of experts shall be created under the Scientific and Technical [Body] [Network]. States Parties with capacity constraints may commission those experts to conduct and evaluate environmental impact assessments for planned activities.]

Article 33

Mitigation, prevention and management of potential adverse effects

[States Parties shall establish procedures for the prevention, mitigation, and management of potential adverse effects of authorized activities under their jurisdiction or control. Such procedures shall include the identification of alternatives to the planned activity.]

Article 34

Public notification and consultation

[1. States Parties shall ensure early notification to stakeholders about planned activities under their jurisdiction or control and effective, time-bound opportunities for stakeholder participation throughout the environmental impact assessment process, including through the submission of comments, before a decision is made as to whether to proceed with the activity.]

[2. Stakeholders in this process include potentially affected States, where those can be identified, [in particular adjacent coastal States] [, indigenous peoples and local communities with relevant traditional knowledge in adjacent coastal States,] relevant global, regional and sectoral bodies, non-governmental organizations, the general

public, academia [, scientific experts] [, affected parties,] [adjacent communities and organizations that have special expertise or jurisdiction] [, interested and relevant stakeholders] [, and those with existing interests in an area].]

[3. Public notification and consultation shall be transparent and inclusive [, and targeted and proactive when involving adjacent small island developing States].]

[4. Substantive comments received during the consultation process [from adjacent coastal States] shall be considered and [addressed] [responded to] by States Parties. States Parties shall give particular regard to comments concerning potential transboundary impacts. States Parties shall make public the comments received and the descriptions of how they were addressed.]

[5. States Parties [undertaking an environmental impact assessment pursuant to this Agreement] shall establish procedures allowing for access to information related to the environmental impact assessment process under this Agreement. [Notwithstanding this, States Parties shall not be required to disclose non-public information or information that would undermine intellectual property rights or other interests].]

[6. [All States and, in particular] Adjacent coastal States [, including small island developing States,] shall be [kept informed of] [consulted actively [, as appropriate,] in] the monitoring, reporting and review processes in respect of [an activity approved under this Agreement] [activities in areas beyond national jurisdiction].]

[7. Procedures may be developed by the Conference of the Parties to facilitate consultation at the international level.]

Article 35

Preparation and content of environmental impact assessment reports

1. States Parties shall be responsible for the preparation of an environmental impact assessment report for any such assessment undertaken pursuant to this Part.

2. Where an environmental impact assessment is required in accordance with this Part, the environmental impact assessment report [shall] [may] include [as a minimum, the following information]:

(a) A description of the planned activity [and its purpose] [, including a description of the location of the planned activity];

(b) A description of the results of the scoping exercise;

(c) A description of the marine environment likely to be affected;

(d) A description of the potential effects of the planned activity on the marine environment, including [social, economic, cultural and other relevant impacts,] and [reasonably foreseeable potential direct, indirect,] [cumulative and transboundary impacts], [as well as an estimation of their significance] [, including a description of the likelihood that the assessed activity will cause substantial pollution of or other significant and harmful changes to the marine environment in areas beyond national jurisdiction and its biodiversity];

(e) A description [, where appropriate,] of reasonable alternatives to the planned activity, including the no-action alternative;

[(f) A description of the worst-case scenario that could be expected to occur as a result of the planned activity];

(g) A description of any measures for avoiding, preventing [, minimizing] and mitigating impacts [and, where necessary and possible, redressing any substantial pollution of or significant and harmful changes to the marine environment] [and other adverse social, economic, cultural and relevant impacts];

(h) A description of any follow-up actions, including any monitoring and management programmes, any plans for post-project analysis where scientifically justified, and plans for remediation;

(i) Uncertainties and gaps in knowledge;

(j) [A non-technical summary] [and/or a technical summary];

[(k) The identification of the sources of the information contained in the report;]

[(l) An explicit indication of predictive methods and underlying assumptions, as well as the relevant environmental data used;]

[(m) The methodology used to identify environmental impacts;]

[(n) An environmental management plan, including a contingency plan for responding to incidents that have an impact on the marine environment;]

[(o) The environmental record of the proponent;]

[(p) A review of the business plan for the planned activity;]

(q) A description of consultations undertaken in the environmental impact assessment process, including with relevant global, regional and sectoral bodies.

[3. Further [details] [guidance] regarding the required content of an environmental impact assessment report [shall] [may] be developed by the Conference of the Parties as an annex to this Agreement and shall be based on the best available scientific information and knowledge, including traditional knowledge. [[These details] [This guidance] shall be reviewed regularly].]

Article 36 **Publication of [assessment] reports**

States Parties shall publish and communicate the reports of the results of the assessments in accordance with [articles 204 to 206] [article 205] of the Convention [, including through the clearing-house mechanism].

[Article 37] **Consideration and review of [assessment] reports]**

[The environmental impact assessment reports prepared pursuant to this Agreement shall be considered and reviewed on the basis of approved scientific methods [by the Scientific and Technical [Body] [Network]].]

Article 38 **Decision-making**

[1. Alt. 1. Where a planned activity is under the jurisdiction or control of a State Party, that State shall be responsible for determining whether the planned activity may proceed.]

[1. Alt. 2. The Conference of the Parties shall be responsible for determining whether a planned activity may proceed, in accordance with the following procedural requirements:

(a) The environmental impact assessment report shall be submitted to the Scientific and Technical [Body] [Network] for review, which shall, having regard to the inputs received during public consultation, review the report and make a recommendation to the Conference of the Parties on whether the planned activity should proceed[;]

[(b) A revised environmental impact assessment report may be submitted to the panel of experts, appointed by the Scientific and Technical [Body] [Network], for reconsideration where the Scientific and Technical [Body] [Network] has recommended that the planned activity should not proceed.]]

[1. Alt. 3. The Conference of the Parties may delegate its decision-making function to a relevant regional body in accordance with conditions and requirements to be established by the Conference.]

[2. No decision allowing the planned activity to proceed shall be made where the environmental impact assessment indicates that the planned activity would have severe adverse impacts on the environment.]

[3. Decision-making-related documents shall be made public, including through the clearing-house mechanism.]

Article 39 Monitoring

[In accordance with articles 204 to 206 of the Convention,] States Parties shall [[continuously] monitor the effects of authorized activities] [ensure that the environmental impacts of the authorized activity are [continuously] monitored [and supervised] [by the proponent of the planned activity]] [, in accordance with the conditions set out in the approval of the activity].]

Article 40 Reporting

[1. Alt. 1. States Parties shall report on the effects of authorized activities in accordance with articles 204 to 206 of the Convention.]

[1. Alt. 2. States Parties shall ensure that the [environmental impacts of the authorized activity] [the results of the monitoring required under article 39] are [periodically] reported on.]

[1. Alt. 3. [States Parties] [and] [[Existing] relevant legal instruments and frameworks and relevant global, regional or sectoral bodies] shall [periodically] report on [the environmental impacts of the authorized activity] [the results of the monitoring and review required under articles 39 and 41].].

[2. Reports shall be submitted to [the clearing-house mechanism] [the Scientific and Technical [Body] [Network]] [[existing] relevant legal instruments or frameworks or relevant global, regional and sectoral bodies and other States].]

[(a) The Scientific and Technical [Body] [Network] may request independent consultants or an expert panel to undertake a further review of the reports submitted to it;]

[(b) [Existing relevant] [Relevant] legal instruments and frameworks and relevant global, regional and sectoral bodies and other States may [analyse the reports and highlight cases of non-compliance, the lack of information or other shortcomings] [provide recommendations regarding] [comment on] the environmental assessment and review.]

Article 41

Review

[1. Alt. 1. [The Scientific and Technical [Body] [Network] shall] [States Parties shall] [States Parties shall require the proponent to] review the [environmental impacts of the authorized activity] [results of the monitoring required under article 39] [conditions set out in the authorization of the activity].]

[1. Alt. 2. States Parties shall ensure that the environmental impacts of the authorized activity are reviewed.]

[(a) Should the results of the monitoring required under article 39 identify adverse impacts not foreseen in the environmental impact assessment, the [State with jurisdiction or control over the activity] [Scientific and Technical [Body] [Network]] shall:

[(i) Notify the [Conference of the Parties] [other States] [the public];]

[(ii) Halt the activity;]

[(iii) Require the proponent to propose measures to mitigate and/or prevent those impacts;]

[(iv) Evaluate measures proposed under article [...] and decide whether the activity should continue;]

[(b) The Conference of the Parties shall develop guidelines on the nature and severity of the impacts that would require a supplemental environmental impact assessment.]

[2. A non-adversarial consultation process shall be established to resolve [controversies] [differences] [disagreements] in respect of monitoring, [without recourse to judicial or non-judicial bodies].]

PART V

CAPACITY-BUILDING AND TRANSFER OF MARINE TECHNOLOGY

Article 42

Objectives

Capacity-building and the transfer of marine technology shall be aimed at:

(a) Assisting States Parties, in particular developing States Parties, in implementing the provisions of this Agreement, in order to achieve its objectives;

(b) Enabling inclusive and effective participation in the activities undertaken under this Agreement;

[(c) [Promoting and encouraging] [Ensuring] [Providing or facilitating] access to technology by and transfer of marine technology for peaceful purposes to developing States Parties for the attainment of the objectives of this Agreement;]

- (d) Increasing, disseminating and sharing knowledge on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction;
- (e) Developing the marine scientific and technological capacity of States Parties with regard to the conservation and sustainable use of marine biological resources of areas beyond national jurisdiction;
- (f) Ensuring that developing States Parties have:
 - [(i) Access to, and benefit from, the scientific information resulting from access to resources in areas beyond national jurisdiction, in particular marine genetic resources;]
 - [(ii) Access to, and that their special requirements receive consideration in, the sharing of benefits from marine genetic resources and in marine scientific research;]
 - [(iii) Access to marine genetic resources *in situ*, *ex situ* [and *in silico*] [[and] [as] [digital] [genetic] sequence data [and information]];
 - [(iv) [Endogenous] [Local] research capabilities relating to marine genetic resources and products, processes and other tools;]
 - (v) The capacity to develop, implement, monitor and manage, including to enforce, any area-based management tools, including marine protected areas;
 - (vi) The capacity to conduct and evaluate environmental impact assessments [and strategic environmental assessments].

Article 43

Cooperation in capacity-building and transfer of marine technology

1. States Parties, directly or through [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies, shall [promote] [ensure] [facilitate] cooperation, [in accordance with [this Agreement] [Part XIV of the Convention],] [in accordance with their capabilities,] in capacity-building and the transfer of marine technology to assist [States Parties that need and request it, in particular] developing States Parties in achieving the objectives of this Agreement.
2. Capacity-building and the transfer of marine technology under this Agreement shall be [carried out] [promoted] through enhanced cooperation [, including through North-South, South-South and triangular cooperation, cooperation with other relevant stakeholders, including industry and the private sector] and through strengthening cooperation, coordination and synergies between [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies.
3. In giving effect to the duty to [cooperate] [promote cooperation] under this article, States shall give full recognition to the special requirements of developing States Parties, in particular least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States and developing middle-income countries.

Article 44

Modalities for capacity-building and the transfer of marine technology

1. Capacity-building and the transfer of marine technology [shall] [may] be provided on a [voluntary] [bilateral, regional and multilateral] basis.
2. Capacity-building and the transfer of marine technology shall be transparent and country-driven [, and shall, as far as possible, not duplicate existing programmes]. Capacity-building and the transfer of marine technology shall be guided by lessons learned, including those from capacity-building and the transfer of marine technology activities under existing relevant legal instruments and frameworks and relevant global, regional and sectoral bodies, and should be an effective, iterative process that is participatory, cross-cutting and gender-responsive.
3. Capacity-building and the transfer of marine technology shall be based on and be responsive to the needs and priorities of developing States Parties [carried out through] [as determined by] [informed by] a needs assessment [on an individual case-by-case or regional basis]. Such needs and priorities may be self-assessed or facilitated through a mechanism, which may be established by the Conference of the Parties.
- [4. Detailed modalities, procedures and guidelines for capacity-building and the transfer of marine technology [may] [shall] be developed and adopted by the Conference of the Parties.]

Article 45

Additional modalities for the transfer of marine technology

- [1. States Parties, recognizing that marine technology includes biotechnology and that both access to and the transfer of marine technology among States Parties are essential elements for the attainment of the objectives of this Agreement, [undertake to provide or facilitate] [shall promote] [shall ensure] access for and transfer to developing States Parties of appropriate, reliable, affordable, modern and environmentally sound marine technology that is relevant to the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction.]
2. The development and transfer of marine technology shall be [carried out] [promoted]:
 - (a) On a [voluntary] [voluntary and mandatory] basis;
 - (b) [On the basis of fair and reasonable terms and conditions] [On fair and most favourable terms, including on concessional and preferential terms] [According to mutually agreed terms and conditions].
- [3. Alt. 1. The transfer of marine technology shall [take into account the need to protect intellectual property rights] [be carried out with due regard for all legitimate interests, including the rights and duties of holders, suppliers and recipients of marine technology].]
- [3. Alt. 2. States Parties shall [protect] [respect the protection of] intellectual property rights.]
- [3. Alt. 3. Intellectual property rights [related to resources of areas beyond national jurisdiction] shall [not preclude the transfer of technology] [be subject to specific limitations in furtherance of technology transfer related to marine technology] under this Agreement.]

4. States Parties shall [promote] [ensure] the transfer of marine technology in an accessible form for developing States Parties, in particular least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States and developing middle-income countries [, and shall ensure that such transfer is not conditional on onerous reporting requirements].

Article 46

Types of capacity-building and transfer of marine technology

[Alt.1

1. In support of the objectives set out in article 42, the types of capacity-building and transfer of marine technology may include, and are not limited to:

- (a) The sharing of relevant data, information, knowledge and research;
- (b) Information dissemination and awareness-raising, including with respect to traditional knowledge;
- (c) The development and strengthening of relevant infrastructure, including equipment;
- (d) The development and strengthening of institutional capacity and national regulatory frameworks or mechanisms;
- (e) The development and strengthening of human resources and technical expertise through exchanges, research collaboration, technical support, education and training and the transfer of technology;
- (f) The development and sharing of manuals, guidelines and standards;
- (g) The development of technical, scientific and research and development programmes, including biotechnological research activities.]

[Alt.2

1. In support of the objectives set out in article 42, the types of capacity-building and transfer of marine technology are set forth in the annex.]

[Alt.3

1. The Conference of the Parties [shall] [may] develop [guidelines on] [an indicative, non-exhaustive and flexible list of] [a broad set of categories of] types of capacity-building and transfer of marine technology and may establish a subsidiary body for that purpose.]
2. [The types of capacity-building and transfer of marine technology set out in paragraph 1 of this article] [The list set forth in the annex] [The guidelines] [shall] [may] be reviewed, assessed and adjusted periodically by the Conference of the Parties to reflect technological progress and innovation and to respond and adapt to the evolving needs of States and regions.

Article 47

Monitoring and review

1. Capacity-building and the transfer of marine technology activities undertaken in accordance with this Agreement shall be monitored and reviewed periodically.

2. The monitoring and review referred to in paragraph 1 shall be aimed at:

(a) Reviewing the needs and priorities of developing States Parties in terms of capacity-building and transfer of marine technology, including the support required, provided and mobilized, and gaps in meeting requirements from developing States Parties;

(b) Measuring performance on the basis of objective indicators and reviewing results-based analyses, including the output, progress and effectiveness of capacity-building and transfer of marine technology activities, successes and challenges;

(c) Making recommendations for proposed ways forward and follow-up activities, including on how capacity-building and the transfer of marine technology could be further enhanced to allow developing States Parties, in particular least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States and developing middle-income countries, to fully meet their obligations and exercise their rights under this Agreement.

3. Monitoring and review shall be carried out by the Conference of the Parties, which shall decide upon the details and modalities of such review and monitoring, including with regard to any subsidiary body that it may wish to establish in this respect.

4. The monitoring and review of capacity-building and transfer of marine technology activities under this Agreement shall include all relevant actors involved in the process, including at the regional level.

5. In supporting the monitoring and review of capacity-building and the transfer of marine technology, States Parties [and regional committees on capacity-building and the transfer of marine technology] may submit, on a voluntary basis, reports, which may be made publicly available, on capacity-building and the transfer of marine technology given and received. States Parties shall ensure that reporting requirements for developing States Parties, in particular least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States and developing middle-income countries, are streamlined and not onerous.

PART VI INSTITUTIONAL ARRANGEMENTS

Article 48 Conference of the Parties

1. A Conference of the Parties is hereby established.

2. The first meeting of the Conference of the Parties shall be convened no later than one year after the entry into force of this Agreement. Thereafter, ordinary meetings of the Conference shall be held at regular intervals to be determined by the Conference at its first meeting.

3. The Conference of the Parties shall agree upon and adopt rules of procedure for itself and for any subsidiary body that it may establish.

4. The Conference of the Parties shall monitor and keep under review the implementation of this Agreement and, for this purpose, shall:

- (a) Make, within its mandate, decisions and recommendations related to the implementation of this Agreement;
- (b) Exchange information relevant to the implementation of this Agreement;
- (c) Promote cooperation and coordination with and among [existing] relevant legal instruments and frameworks and relevant global, regional and sectoral bodies, with a view to promoting coherence among efforts towards, and the harmonization of relevant policies and measures for, the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction [, including by establishing processes for cooperation and coordination among relevant global, regional and sectoral bodies] [, including by inviting other global, regional and sectoral bodies to establish processes for cooperation];
- (d) Establish such subsidiary bodies as deemed necessary for the implementation of this Agreement [, which may include:
 - [(i) An access and benefit-sharing mechanism;]
 - [(ii) A capacity-building and transfer of marine technology committee;]
 - [(iii) An implementation and compliance committee;]
 - [(iv) A finance committee]];
- (e) Adopt, at each ordinary meeting, a budget for the financial period until the following ordinary meeting;
- (f) Undertake other functions identified in this Agreement or as may be required for its implementation.

[5. The Conference of the Parties [shall] [may], at intervals to be determined by it, assess and review the adequacy and effectiveness of the provisions of this Agreement and, if necessary, propose means of strengthening the substance and methods of implementation of those provisions in order to better address the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction.]

Article 49

Scientific and Technical [Body] [Network]

1. A Scientific and Technical [Body] [Network] is hereby established.
2. The [Body] [Network] shall be composed of experts, taking into account the need for multidisciplinary expertise [, including traditional knowledge expertise], gender balance and equitable geographical representation.
3. The [Body] [Network] may also draw on appropriate advice from existing arrangements, such as the Joint Group of Experts on the Scientific Aspects of Marine Environmental Protection, as well as other scientists and experts, as may be required.
- [4. Alt. 1. Under the authority and guidance of the Conference of the Parties, [and upon its request,] the [Body] [Network] shall:
 - (a) Provide scientific and technical advice to the Conference of the Parties;
 - [(b) Have advisory competence with regard to marine genetic resources, including questions on the sharing of benefits;]
 - [(c) Elaborate a benefit-sharing mechanism;]
 - [(d) Monitor the utilization of marine genetic resources of areas beyond national jurisdiction;]

[(e) Possess recommendatory functions with respect to measures such as area-based management tools, including marine protected areas, including regarding:

- (i) Standard-setting and review;
- (ii) The assessment of proposals;
- (iii) The monitoring and review of measures;]

[(f) Elaborate guidelines with respect to environmental impact assessments;]

[(g) Make recommendations to the Conference of the Parties with respect to environmental impact assessments;]

[(h) Review environmental impact assessment standards to ensure consistency with the requirements under this Agreement;]

[(i) Identify innovative, efficient and state-of-the-art technology and know-how relating to the conservation and sustainable use of marine biological diversity;]

[(j) Advise on ways and means to promote the development and transfer of marine technology;]

[(k) Assess the effectiveness of the implementation of measures and programmes for capacity-building and the transfer of marine technology, including by assessing whether capacity gaps are decreasing;]

[(l) Collaborate with regional committees on capacity-building and the transfer of marine technology or regional needs assessment mechanisms;]

[(m) Elaborate programmes for capacity-building and the transfer of marine technology;]

[(n) Establish subsidiary bodies as required;]

(o) Perform such other functions as may be determined by the Conference of the Parties or assigned to it under this Agreement.

[4. Alt. 2. The functions of the [Body] [Network] shall be elaborated by the Conference of the Parties.]

Article 50

Secretariat

[1. Alt. 1. A secretariat is hereby established.]

[1. Alt. 2. The Conference of the Parties shall [, at its first ordinary meeting,] designate the secretariat from among those existing competent international organizations that have signified their willingness to carry out the secretariat functions under this Agreement.]

[1. Alt. 3. The secretariat functions for this Agreement shall be performed by the Division for Ocean Affairs and the Law of the Sea of the Office of Legal Affairs of the United Nations.]

[1. Alt. 4. The secretariat functions under this Agreement shall be performed by the secretariat of the International Seabed Authority.]

2. The secretariat shall:

- (a) Provide administrative and logistical support;
- (b) Convene and service the meetings of the Conference of the Parties and of any other bodies as may be established by the Conference;

- (c) Circulate information relating to the implementation of this Agreement;
- [(d) [Ensure] [Facilitate] [the necessary] [appropriate] coordination with the secretariats of other relevant international bodies;]
- [(e) Provide assistance with the implementation of this Agreement, as mandated by the Conference of the Parties;]
- [(f) Prepare reports on the execution of its functions under this Agreement and submit them to the Conference of the Parties;]
- (g) Perform such other functions as may be determined by the Conference of the Parties or assigned to it under this Agreement.

Article 51

Clearing-house mechanism

1. A clearing-house mechanism is hereby established.
2. The clearing-house mechanism shall consist primarily of an open-access web-based platform. It shall also include a network of experts and practitioners in relevant fields. The specific modalities for the operation of the clearing-house mechanism shall be determined by the Conference of the Parties.
- [3. Alt. 1. The clearing-house mechanism shall serve as a centralized platform to enable States Parties to have access to, [collect,] evaluate, [publish] [make public] and disseminate information with respect to:
 - [(a) Activities related to marine genetic resources of areas beyond national jurisdiction, including notices of forthcoming *in situ* collection of marine genetic resources, research teams, ecosystems where the marine genetic resources are collected, the [digital] [genetic] properties of the marine genetic resources, their biochemical components, genetic sequence data [and information] [and the utilization of marine genetic resources];]
 - [(b) Data and scientific information on, as well as [, in line with the principle of prior informed consent,] traditional knowledge associated with, marine genetic resources of areas beyond national jurisdiction, including through lists of databases, repositories or gene banks where marine genetic resources of areas beyond national jurisdiction are currently held, a registry of such resources, and a track-and-trace mechanism for marine genetic resources of areas beyond national jurisdiction and their utilization;]
 - [(c) The sharing of benefits, including through reports on the status of monetary benefits shared and on their use through the publication of the proceedings of the meetings of the Conference of the Parties;]
 - [(d) Environmental impact assessments [, including:
 - (i) Environmental impact assessment reports;
 - (ii) Statements of the reasons underlying decisions related to environmental impact assessments and how environmental concerns have been taken into account;
 - (iii) The policies, guidelines and technical methods of States Parties for environmental impact assessments;
 - (iv) Guidelines and technical methods on environmental impact assessments;
 - (v) Best practices on environmental impact assessments;]

(vi) Indications of areas in which proposed planned activities will take place;]]

[(e) Opportunities for capacity-building and the transfer of marine technology, such as activities, programmes and projects being conducted in areas beyond national jurisdiction, including those relevant to building capacity for skills development in activities covered in this Agreement [, as well as availability of funding];]

[(f) Requests for capacity-building and the transfer of marine technology on a case-by-case basis, including patent monitoring services, and other relevant legal services;]

[(g) Research collaboration and training opportunities, including in relation to information on universities and other organizations that offer study grants and facilities in the field of marine science, marine research institutes that offer laboratory facilities, equipment and opportunities for research and training, and offers of cruise studies at the global, regional and subregional levels;]

[(h) Information on sources and availability of technological information and data for the transfer of marine technology and opportunities for facilitated access to marine technology.]

[3. Alt. 2. The functions of the clearing-house mechanism shall be elaborated by the Conference of the Parties.]

[4. The clearing-house mechanism [shall] [should]:

[(a) Match capacity-building needs with the support available and with providers for the transfer of marine technology, including governmental, non-governmental or private entities interested in participating as donors in the transfer of marine technology, and [provide] [facilitate] access to related know-how and expertise;

[(b) Promote linkages to existing relevant global, regional, subregional, national and sectoral clearing-house mechanisms and other databases, repositories and gene banks [, including experts in traditional knowledge];]

[(c) Link to private and non-governmental platforms for the exchange of information;]

[(d) Build on existing regional and subregional clearing-house institutions, if applicable, when establishing regional and subregional mechanisms under the global mechanism;]

(e) Facilitate enhanced transparency, including by providing baseline data and information;

(f) Facilitate international cooperation and collaboration, including scientific and technical cooperation and collaboration.

[5. The clearing-house mechanism shall recognize the special circumstances of small island developing States [and archipelagic developing States], facilitate access to the mechanism to enable those States to utilize it without undue obstacles or administrative burdens, and include information on activities to promote information-sharing, awareness-raising and dissemination in and with those States, as well as provide specific programmes for those States.]

[6. The clearing-house mechanism shall be managed by [the secretariat] [the Intergovernmental Oceanographic Commission of the United Nations Educational, Scientific and Cultural Organization, in association with relevant organizations, including the International Seabed Authority and the International Maritime Organization, and shall be informed by the Intergovernmental Oceanographic Commission Criteria and Guidelines on the Transfer of Marine Technology].]

[7. Due regard shall be given to the confidentiality of information provided under this Agreement.]

[PART VII FINANCIAL RESOURCES [AND MECHANISM]]

[Article 52 Funding]

[1. Funding in support of the implementation of this Agreement, in particular capacity-building and the transfer of marine technology under this Agreement, [shall] [may] [aims to strive to] be adequate, accessible, transparent [, sustainable and predictable] and [both voluntary and mandatory] [voluntary].]

2. Funding may be provided through public and private sources, both national and international, including but not limited to contributions from States, international financial institutions, existing funding mechanisms under global and regional instruments, donor agencies, intergovernmental organizations, non-governmental organizations and natural and juridical persons, and through public-private partnerships.

3. States Parties shall ensure that, for the purposes of the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, developing States are granted preference by international organizations in the allocation of appropriate funds and technical assistance and the utilization of their specialized services.

4. A voluntary trust fund to facilitate the participation of representatives of developing States Parties in the meetings of the bodies under this Agreement shall be established by the Conference of the Parties. It shall be funded through voluntary contributions.

[Alt.1

5. In addition to the voluntary trust fund, a special fund [may] [shall] be established by the Conference of the Parties to:

(a) Fund capacity-building projects, including effective projects on the conservation and sustainable use of marine biological diversity;

(b) Fund activities and programmes, including training, related to the transfer of technology;

(c) Assist developing States Parties to implement this Agreement;

(d) Finance the rehabilitation and ecological restoration of marine biological diversity of areas beyond national jurisdiction;

(e) Support conservation and sustainable use programmes by holders of traditional knowledge in local communities;

(f) Support public consultations at the national and regional levels;

(g) Undertake any other functions as agreed by the States Parties.

5 bis. The special fund shall be funded through:

(a) Voluntary contributions;

[(b) Mandatory sources, including:

- (i) Contributions from States Parties and royalties and milestone payments resulting from the utilization of marine genetic resources;
- (ii) Payments as a condition of access to, and utilization of, marine genetic resources, premiums paid during the approval process of environmental impact assessments, in addition to cost recovery, fees and penalties, and other avenues for mandatory payments;]
- (c) Endowments by States Parties;
- (d) Existing financial mechanisms, such as the Global Environment Facility and the Green Climate Fund;
- [(e) Private entities wishing to engage in the exploration and exploitation of marine biological diversity of areas beyond national jurisdiction.]]

[Alt.2

5. States Parties shall cooperate to establish appropriate funding mechanisms to assist developing States Parties with achieving the objectives of capacity-building and the transfer of marine technology under this Agreement.]
6. The funding mechanisms established under this Agreement shall be aimed at ensuring efficient access to funding through simplified approval procedures and enhanced readiness of support for developing States Parties, in particular least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States and developing middle-income countries.
7. Access to funding under this Agreement shall be open to developing States Parties [and other stakeholders] [on the basis of need] [[, taking into account the needs for assistance of] [giving priority to] States with special requirements, in particular least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States and developing middle-income countries].

PART VIII IMPLEMENTATION [AND COMPLIANCE]

Article 53 Implementation [and compliance]

1. States Parties shall take the necessary legislative, administrative or policy measures, as appropriate, to ensure the implementation of this Agreement.
- [2. Each State Party shall monitor the implementation of its obligations under this Agreement and shall, at intervals and in a format to be determined by the Conference of the Parties, report to the Conference on measures that it has taken to implement this Agreement.]
- [3. The Conference of the Parties shall consider and approve cooperative procedures and institutional mechanisms to promote compliance with the provisions of this Agreement and to address cases of non-compliance.]

[PART IX SETTLEMENT OF DISPUTES]

Article 54 Obligation to settle disputes by peaceful means

States have the obligation to settle their disputes by negotiation, enquiry, mediation, conciliation, arbitration, judicial settlement, resort to regional agencies or arrangements, or other peaceful means of their own choice.

[Article 55 Procedures for the settlement of disputes]

[1. The provisions relating to the settlement of disputes set out in Part XV of the Convention apply mutatis mutandis to any dispute between States Parties to this Agreement concerning the interpretation or application of this Agreement, whether or not they are also Parties to the Convention.]

[2. Any procedure accepted by a State Party to this Agreement and the Convention pursuant to article 287 of the Convention shall apply to the settlement of disputes under this Part, unless that State Party, when signing, ratifying or acceding to this Agreement, or at any time thereafter, has accepted another procedure pursuant to article 287 for the settlement of disputes under this Part.]

[3. A State Party to this Agreement that is not a Party to the Convention, when signing, ratifying or acceding to this Agreement, or at any time thereafter, shall be free to choose, by means of a written declaration, one or more of the means set out in article 287, paragraph 1, of the Convention for the settlement of disputes under this Part. Article 287 shall apply to such a declaration, as well as to any dispute to which such State is a party that is not covered by a declaration in force. For the purposes of conciliation and arbitration in accordance with annexes V, VII and VIII to the Convention, such State shall be entitled to nominate conciliators, arbitrators and experts to be included in the lists referred to in annex V, article 2, annex VII, article 2, and annex VIII, article 2, for the settlement of disputes under this Part.]

[PART X NON-PARTIES TO THIS AGREEMENT]

[Article 56 Non-parties to this Agreement]

[States Parties shall encourage non-parties to this Agreement to become parties thereto and to adopt laws and regulations consistent with its provisions.]

PART XI GOOD FAITH AND ABUSE OF RIGHTS

Article 57 Good faith and abuse of rights

States Parties shall fulfil in good faith the obligations assumed under this Agreement and exercise the rights recognized therein in a manner that would not constitute an abuse of right.

PART XII FINAL PROVISIONS

Article 58 Signature

[This Agreement shall be open for signature by all States and the other entities referred to in article [1 (12) (b)] from [insert date] and shall remain open for signature at United Nations Headquarters until [insert date].]

Article 59 Ratification, approval, acceptance and formal confirmation

[This Agreement is subject to ratification, approval or acceptance by States and to formal confirmation by the other entities referred to in article [1 (12) (b)]. The instruments of ratification, approval, acceptance and formal confirmation shall be deposited with the Secretary-General of the United Nations.]

Article 60 Accession

[This Agreement is open for accession by States and the other entities referred to in article [1 (12) (b)] from the day following the date on which it is closed for signature. The instruments of accession shall be deposited with the Secretary-General of the United Nations.]

Article 61 Entry into force

[1. This Agreement shall enter into force [30] days after the date of deposit of the [...] instrument of ratification, approval, acceptance or accession.]

[2. For each State or entity that ratifies, approves or accepts the Agreement or accedes thereto after the deposit of the [...] instrument of ratification, approval, acceptance or accession, this Agreement shall enter into force on the [thirtieth] day following the deposit of its instrument of ratification, approval, acceptance or accession.]

[Article 62 Provisional application]

[1. This Agreement shall be applied provisionally by a State or entity that consents to its provisional application by so notifying the depositary in writing at the time of signature or deposit of its instrument of ratification, acceptance, approval, formal confirmation or accession. Such provisional application shall become effective from the date of receipt of the notification by the Secretary-General.]

[2. Provisional application by a State or entity shall terminate upon the entry into force of this Agreement for that State or entity or upon notification by that State or entity to the depositary in writing of its intention to terminate its provisional application.]

Article 63 Reservations and exceptions

[No reservations or exceptions may be made to this Agreement.]

[Article 64 Relation to other agreements]

[1. Two or more States Parties may conclude agreements modifying or suspending the operation of provisions of this Agreement, applicable solely to the relations between them, provided that such agreements do not relate to a provision the derogation from which is incompatible with the effective execution of the object and purpose of this Agreement, and provided further that such agreements shall not affect the application of the basic principles embodied herein, and that the provisions of such agreements do not affect the enjoyment by other States Parties of their rights or the performance of their obligations under this Agreement.]

[2. States Parties intending to conclude an agreement referred to in paragraph 1 shall notify the other States Parties through the secretariat referred to in article 50 of their intention to conclude the agreement and of the modification or suspension that it provides.]

Article 65 Amendment

[1. A State Party may, by written communication addressed to the secretariat referred to in article 50, propose amendments to this Agreement. The secretariat shall circulate such communication to all States Parties. If, within [six] months from the date of the circulation of the communication, not less than [one half] of the States Parties reply favourably to the request, the proposed amendment shall be considered at the following meeting of the Conference of the Parties.]

[2. The Conference of the Parties shall make every effort to reach agreement on the adoption of any proposed amendment by way of consensus. If all efforts to reach consensus have been exhausted, the procedures established in the rules of procedure adopted by the Conference shall apply.]

[3. An amendment adopted in accordance with paragraph 2 of this article shall be communicated by the depositary to all States Parties for ratification, approval or acceptance.]

[4. Amendments to this Agreement shall enter into force for the States Parties ratifying, approving or accepting them on the [thirtieth] day following the deposit of instruments of ratification, approval or acceptance by [two-thirds] of the number of States Parties [at the time of adoption of the amendment] [at the time of ratification, approval or acceptance of the amendment]. Thereafter, for each State Party depositing its instrument of ratification, approval or acceptance of an amendment after the deposit of the required number of such instruments, the amendment shall enter into force on the [thirtieth] day following the deposit of its instrument of ratification, approval or acceptance.]

[5. An amendment may provide that a smaller or a larger number of ratifications or accessions shall be required for its entry into force than required under this article.]

Article 66

Denunciation

[1. A State Party may, by written notification addressed to the Secretary-General of the United Nations, denounce this Agreement and may indicate its reasons. Failure to indicate reasons shall not affect the validity of the denunciation. The denunciation shall take effect [one year] after the date of receipt of the notification, unless the notification specifies a later date.]

[2. The denunciation shall not in any way affect the duty of any State Party to fulfil any obligation embodied in this Agreement to which it would be subject under international law independently of this Agreement.]

Article 67

Participation by international organizations

[1. In cases where an international organization referred to in annex IX, article 1, of the Convention does not have competence over all the matters governed by this Agreement, annex IX to the Convention shall apply mutatis mutandis to participation by such international organization in this Agreement, except that the following provisions of that annex shall not apply:

- (a) Article 2, first sentence;
- (b) Article 3, paragraph 1.]

[2. In cases where an international organization referred to in annex IX, article 1, of the Convention has competence over all the matters governed by this Agreement, the following provisions shall apply to participation by such international organization in this Agreement:

- (a) At the time of signature, formal confirmation or accession, such international organization shall make a declaration stating that:
 - (i) It has competence over all matters governed by this Agreement;
 - (ii) For this reason, its member States shall not become States Parties, except in respect of their territories for which the international organization has no responsibility;
 - (iii) It accepts the rights and obligations of States under this Agreement;
- (b) Participation of such an international organization shall in no case confer any rights under this Agreement on member States of the international organization;

(c) In the event of a conflict between the obligations of an international organization under this Agreement and its obligations under the agreement establishing the international organization or any acts relating to it, the obligations under this Agreement shall prevail.]

[Article 68 Annex[es]]

[1. The annex[es] form[s] an integral part of this Agreement and, unless expressly provided otherwise, a reference to this Agreement or to one of its Parts includes a reference to the annex[es] relating thereto.]

[2. The annex[es] may be revised from time to time by States Parties. Notwithstanding the provisions of article 65, if a revision to an annex is adopted by consensus at a meeting of the Conference of the Parties, it shall be incorporated in this Agreement and shall take effect from the date of its adoption or from such other date as may be specified in the revision. Once adopted, the revised annex shall be submitted to the depositary for its circulation to all States. If a revision to an annex is not adopted by consensus at such a meeting, the amendment procedures set out in article 65 shall apply.]

Article 69 Depositary

[The Secretary-General of the United Nations shall be the depositary of this Agreement and any amendments or revisions thereto.]

Article 70 Authentic texts

The Arabic, Chinese, English, French, Russian and Spanish texts of this Agreement are equally authentic.

[ANNEX Types of capacity-building and transfer of marine technology]

[Under this Agreement, capacity-building and the transfer of marine technology initiatives may include, and are not limited to:

- (a) The sharing of relevant data, information, knowledge and research, in user-friendly formats, including:
 - (i) The sharing of marine scientific and technological knowledge;
 - (ii) The exchange of information on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction;
 - (iii) The sharing of research and development results;
- (b) Information dissemination and awareness-raising, including with regard to:
 - (i) Marine scientific research, marine sciences and related marine operations and services;
 - (ii) Environmental and biological information collected through research conducted in areas beyond national jurisdiction;
 - (iii) Relevant traditional knowledge [, in line with the principle of prior informed consent];
 - (iv) Stressors on the ocean that affect marine biological diversity of areas beyond national jurisdiction, including the adverse effects of climate change and ocean acidification;
 - (v) Measures such as area-based management tools, including marine protected areas;
 - (vi) Environmental impact assessments;
- (c) The development and strengthening of relevant infrastructure, including equipment, such as:
 - (i) The development and establishment of necessary infrastructure;
 - (ii) The provision of technology, including sampling and methodology equipment (e.g., for water, geological, biological or chemical samples);
 - (iii) The acquisition of the equipment necessary to support and further develop research and development capabilities, including in data management, in the context of access to and the utilization of marine genetic resources, measures such as area-based management tools, including marine protected areas, and the conduct of environmental impact assessments;
- (d) The development and strengthening of institutional capacity and national regulatory frameworks or mechanisms, including:
 - (i) Governance, policy and legal frameworks and mechanisms;
 - (ii) Assistance in the development, implementation and enforcement of national legislative, administrative or policy measures, including associated regulatory, scientific and technical requirements at the national or regional level;
 - (iii) Technical support for the implementation of the provisions of this Agreement, including for data monitoring and reporting;
 - (iv) Capacity to translate data and information into effective and efficient policies, including by facilitating access to and the acquisition of necessary knowledge to inform decision makers in developing States Parties;

- (v) The establishment or strengthening of the institutional capacities of relevant national and regional organizations and institutions;
- (vi) The establishment of national and regional scientific centres, including as data repositories;
- (vii) The development of regional centres of excellence;
- (viii) The development of regional centres for skills development;
- (ix) Increasing cooperative links between regional institutions, for example North-South and South-South collaboration and collaboration among regional seas organizations and regional fisheries management organizations;
- (e) The development and strengthening of human resources and technical expertise through exchanges, research collaboration, technical support, education and training and the transfer of technology, such as:
 - (i) Collaboration and cooperation in marine science, including through data collection, technical exchange, scientific research projects and programmes, and the development of joint scientific research projects in cooperation with institutions in developing States;
 - (ii) [Short-term, medium-term and long-term] [Education] and training in:
 - a. The natural and social sciences, both basic and applied, to develop scientific and research capacity;
 - b. Technology, and the application of marine science and technology, to develop scientific and research capacities;
 - c. Policy and governance;
 - d. The relevance and application of traditional knowledge;
 - (iii) The exchange of experts, including experts on traditional knowledge;
 - (iv) The provision of funding for the development of human resources and technical expertise, including through:
 - a. The provision of scholarships or other grants for representatives of small island developing States Parties in workshops, programmes or other relevant training programmes to develop their specific capacities;
 - b. The provision of financial and technical expertise and resources, in particular for small island developing States, concerning environmental impact assessments;
 - (v) The establishment of a networking mechanism among trained human resources;
 - (f) The development and sharing of manuals, guidelines and standards, including:
 - (i) Criteria and reference materials;
 - (ii) Technology standards and rules;
 - (iii) A repository for manuals and relevant information to share knowledge and capacity on how to conduct environmental impact assessments, lessons learned and best practices;
 - (g) The development of technical, scientific and research and development programmes, including biotechnological research activities.]